

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008471

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ELLEN LINN STAPLES	
vs.	
DEFENDANT: CHRISTINA ALEXANDER PETERSEN, ET AL	

NATURE OF PROCEEDINGS: MOTION – ANTI-SLAPP 425.16

RULING

Defendants Kenneth Michael Petersen and Christina Alexander Petersen’s (together, “Petersen Defendants”) anti-SLAPP motion to strike is DENIED.

BACKGROUND

This is a premises liability case relating to a rental property in Novato. Plaintiff Ellen Lynn Staples (“Plaintiff”) alleges that on December 26, 2023, she tripped over a raised sprinkler head and injured herself while walking on a property owned and maintained by “Defendant.” (FAC, p. 4.) According to the FAC, “Defendant” knew or should have known about the sprinkler head and failed to “repair, cover, or provide warning” of it. (*Ibid.*) Plaintiff further alleges that she resided at the property and was exposed to hazardous mold during her tenancy. (*Id.* at p. 5.) Plaintiff asserts a cause of action for premises liability arising out of the sprinkler head incident, a separate cause of action for premises liability based on the mold, and a general negligence claim on both bases. (*Id.* at pp. 4-6.)

Before the Court is the Petersen Defendants’ anti-SLAPP motion to strike.

LEGAL STANDARD

“A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).) The purpose of this statute is to identify and dispose of lawsuits brought to chill the valid exercise of a litigant’s

constitutional right of petition or free speech. (Code Civ. Proc., § 425.16, subd. (a); *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.)

Courts use a two-step process to evaluate anti-SLAPP motions. (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67.) First, the moving defendant must show that the challenged lawsuit arises from protected activity. (*Ibid.*) To establish protected activity, the defendant must demonstrate that “the act or acts underlying the plaintiff’s claim falls within one of the four categories [of protected activity] identified in section 425.16, subdivision (e).” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 538; accord *Howard Jarvis Taxpayers Assn. v. Powell* (2024) 105 Cal.App.5th 955, 968.) In determining whether a complaint or a subset of it “arises from” protected activity, “[t]he critical consideration is whether the cause of action is *based on* the defendant’s free speech or petitioning activity.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89 [emphasis added]; see also *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) “Courts deciding an anti-SLAPP motion . . . must consider the claim’s elements, the actions alleged to establish those elements, and whether those actions are protected.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1015; accord *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062.)

If the defendant makes this “threshold showing[.]” the court proceeds to the second step, where the plaintiff must demonstrate a probability of prevailing on the merits of the claims at issue. (*Equilon Enterprises, supra*, 29 Cal.4th 53, 67; Code Civ. Proc., § 425.16, subd. (b)(1).) “Only a cause of action that satisfies *both* prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning *and* lacks even minimal merit – is a SLAPP, subject to being stricken under the statute.” (*Navellier, supra*, 29 Cal.4th 82, 89 [emphasis in original].)

DISCUSSION

The Petersen Defendants own a home at 19 Creekview Court in Novato. (K. Petersen Dec., ¶ 1.) Plaintiff began leasing space in that home in 2021. (*Id.* at ¶ 3.) According to Kenneth Petersen, during her tenancy, Plaintiff habitually violated the house rules and started disputes with other tenants. (*Id.* at ¶¶ 4-5.) In August 2023, Mr. Petersen informed Plaintiff that her tenancy was terminated. (*Id.* at ¶ 6 & Ex. 3.) Mr. Petersen and Plaintiff had a meeting to determine whether the issues could be resolved so that Plaintiff could remain at the property. (*Id.* at ¶ 7.) Plaintiff did not change her behavior, but nevertheless remained living at the property for several more months. (*Id.* at ¶¶ 9.) On January 26, 2024, the Petersen Defendants commenced unlawful detainer proceedings to remove Plaintiff from the property. (See Complaint filed Jan. 26, 2024 in Marin County Superior Court Case No. CV0001925.¹) Plaintiff initiated this lawsuit in December 2025.

¹ The Court takes sua sponte judicial notice of this material. (Evid. Code, § 452, subd. (d); *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 752 [court may take judicial notice sua sponte].) Although the Petersen Defendants evidently intended to request judicial notice of the January 26, 2024 complaint that initiated the unlawful detainer action (see Memorandum, p. 5 [citing to RJN, Ex. 1 to establish the date the unlawful detainer action commenced]; RJN at ¶ 1), they did not attach that document to their request for judicial notice. RJN Ex. 1 is a July 18, 2024 filing in the unlawful detainer action that is denominated a motion for leave to file a first amended complaint, but simultaneously purports to be the amended complaint itself. The Petersen Defendants’ request for judicial notice of the operative complaint in this action is granted. (Evid. Code, § 452, subd. (d).)

The Petersen Defendants argue that Plaintiff's case arises out of protected activity because she filed this lawsuit in retaliation for the Petersen Defendants' telling her to vacate their property and/or commencing an unlawful detainer proceeding against her. (Memorandum, pp. 1, 10.) On this theory, Plaintiff's claims arise out of activity that is protected under Code of Civil Procedure, section 425.16, subdivisions (e)(1) ("any written or oral statement or writing made before a . . . judicial proceeding") and/or (e)(2) ("any written or oral statement or writing made in connection with an issue under consideration or review by a . . . judicial body").

Accepting purely for purposes of argument that Plaintiff *did* file this lawsuit in retaliation for the Petersen Defendants' unlawful detainer action or their statements in connection with that action, that is not sufficient to establish that any of her claims arise out of activity protected by the anti-SLAPP statute. "The mere fact that a claim may have been *triggered* by protected activity (such as service of unlawful detainer papers) does not necessarily mean it *arose from* that activity." *Oakland Bulk & Oversized Terminal, LLC v. City of Oakland* (2020) 54 Cal.App.5th 738, 747, fn. 6 [emphasis in original]; accord *Ulkarim v. Westfield LLC* (2014) 227 Cal.App.4th 1266, 1275; *Navellier, supra*, 29 Cal.4th 82, 89; *Ben-Shahar v. Pickart* (2014) 231 Cal.App.4th 1043, 1051.)

The only way a defendant can show that a cause of action arises from protected activity "is to demonstrate that *the defendant's conduct by which the plaintiff claims to have been injured* falls within one of the four categories described in [Code of Civil Procedure, section 425.16, subdivision] (e)[.]" (*Equilon Enterprises, supra*, 29 Cal.4th 53, 66 [emphasis added].) Thus, whether a cause of action arises from protected activity turns on whether protected activity supplies an element of the cause of action. (*Bonni, supra*, 11 Cal.5th 995, 1015; *Park, supra*, 2 Cal.5th 1057, 1063; see also *Littlefield v. Littlefield* (2024) 106 Cal.App.5th 815, 823 [affirming denial of anti-SLAPP motion where movants " 'fail[ed] to state the elements of the challenged claim and identify what actions by [the defendants] supply those elements and form the basis for liability' "] [quoting the trial court's decision].)

The Petersen Defendants lean on their filing the unlawful detainer action against Plaintiff, or making statements in connection with that action, as the protected activity on which their motion rests, but Plaintiff's complaint does not refer to the unlawful detainer action or the Petersen Defendants' statements about it in any way. The operative pleading does not reveal that there was ever a dispute, in court or outside of it, surrounding Plaintiff's tenancy at the Petersen Defendants' property prior to Plaintiff's filing this lawsuit. Plaintiff's causes of action are entirely based on the Petersen Defendants' alleged placement of a sprinkler head and their alleged failure to manage mold at the property.

The Petersen Defendants stress that when determining whether a cause of action arises out of protected activity, courts do not limit themselves to the text of the pleading, but consider extrinsic evidence. (See *Bel Air Internet, LLC* (2018) 20 Cal.App.5th 924, 935.) Even so, the critical issue at the first step of the anti-SLAPP analysis is whether the pleading relies on protected activity to supply an element of a cause of action. (*Bonni, supra*, 11 Cal.5th 995, 1015; see also *Bel Air Internet, supra*, 20 Cal.App.5th 924, 936 ["A plaintiff's complaint ultimately defines the contours of the claims" for anti-SLAPP purposes].) Extrinsic evidence may be useful to clarify what conduct a vague complaint is referring to in its description of the bases for its claims. (See *Coretronic Corp. v. Cozen O'Connor* (2011) 192 Cal.App.4th 1381, 1389 ["In the

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first step of the anti-SLAPP analysis, . . . [t]he court reviews the parties' pleadings, declarations and other supporting documents *to determine what conduct is actually being challenged*[.]” [emphasis added].) But where neither the pleading nor any other material indicates that the complaint asserts protected activity as an element of a cause of action, as is the case here, the anti-SLAPP motion must be denied.

The Petersen Defendants rely on *Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467. *Feldman* is no longer good law given the First District's subsequent commentary on the case in *Oakland Bulk, supra*, 54 Cal.App.5th 738, 747, fn. 6. Even if it were, the Court would consider it distinguishable. In *Feldman*, the court held that the pleading at issue arose out of protected activity, specifically the filing of an unlawful detainer action, the service of a three-day notice to quit, and a defendant's "statements in connection with the threatened unlawful detainer." (160 Cal.App.4th 1467, 1483.) The court explained, "These activities are not merely . . . evidence of wrongdoing or activities 'triggering' the filing of an action that arises out of some other independent activity. These *are* the challenged activities and the bases for all causes of action[.]" (*Ibid.* [emphasis in original].) For example, the pleading contained a breach of contract claim alleging that the defendants had breached a contract *by* threatening to evict the plaintiffs, serving them with a three-day notice to quit, and commencing unlawful detainer proceedings against them. (*Id.* at p. 1484.) Those actions were alleged to supply the "breach" element of the breach of contract claim. (*Ibid.*) In the instant case, the Petersen Defendants have not similarly identified a protected activity as supplying an element of any of Plaintiff's claims.

Because it has determined that the motion must be denied on the merits, the Court does not reach the parties' arguments as to its timeliness.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

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PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PRESERVE TAM VALLEY	
vs.	
DEFENDANT: MARIN COUNTY, ET AL	

NATURE OF PROCEEDINGS: REVIEW HEARING

RULING

Appearances required.

Parties should be prepared to focus their arguments on the term “Scrap and Dismantling Yards” and address the standard of review for an administrative agency’s interpretations of law. To the extent either party argues that the court should consider *Yamaha Corp. of America v. State Bd. of Equalization* (1998) 19 Cal.4th 1, 7-8, which was not referenced in Respondent’s brief, the parties shall address the factors set forth under that case as they apply to the meaning of this term.

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